

APPENDIX A

CITY COUNCIL RULES AND REGULATIONS*

COUNCIL MEETINGS

1. Regular council meetings.

The Council may meet in regular session on the second and fourth Wednesdays of each month at 6:30 p.m. When Wednesday is a holiday, the regular meeting shall be held on Thursday at the same hour unless otherwise provided for by motion. The Council may by motion dispense with any regular meeting. The place of the meeting shall be the City Council Chambers, unless otherwise designated.

2. Special meetings.

Special meetings may be called by five (5) or more members of the Council, by the Mayor, or by the City Manager. The City Clerk, Deputy City Clerk or Assistant City Clerk shall prepare a notice of the special meeting stating time, place, and purpose. The notice shall be mailed by certified mail, fax, e-mail or such other form of written communication where receipt can be verified to each member of the Council and the City Manager at least twenty-four (24) hours before the time of the meeting. It shall also be the duty of the City Clerk, Deputy City Clerk or Assistant City Clerk immediately upon receipt of a request so to do, to make a diligent effort to notify each member of the Council by telephone or otherwise, of such special meeting. In accordance with RSA 91-A:2 II, a notice of the time and place of the meeting,

***Editor's note**—The rules and regulations of the City Council, as amended March 23, 2022, are included herein as superseding the former rules and regulations as amended November 10, 2021. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform. Additions made for clarity are indicated by brackets.

Editor's note—Adopted 1975; amd. 10-9-1991; 2-12-2003; amd. 9-10-2003; readopted 1-14-2004; amd. 2-8-2006; amd. 10-11-2006; amd. 1-9-2008; amd. 9-12-2012; amd. 7-10-2013; amd. 3-9-2016; amd. 8-9-2017; amd. 12-13-2017; amd. 3-13-2019; amd. 2-12-2020; amd. 9-9-2020; amd. 7-28-2021; amd. 11-10-2021; amd. 3-23-2022; amd. 5-22-2024.

shall be posted in two appropriate places one of which may be the public body's Internet website, if such exists, or shall be printed in a newspaper of general circulation in the city or town at least 24 hours, excluding Sundays and legal holidays, prior to such meetings.

3. Emergency meetings.

Emergency meetings may be called by the Mayor or, if absent, the Assistant Mayor without a 24-hour advanced notice. In accordance with RSA 91-A:2 II, "an emergency shall mean a situation where immediate undelayed action is deemed to be imperative. The Mayor or, if absent, the Assistant Mayor shall post a notice of the time and place of such meeting as soon as practicable, and shall employ whatever further means are reasonably available to inform the public that a meeting is to be held. In accordance with RSA 91-A:2 III(b), an emergency meeting can be called without the presence of a physical quorum given it may not be reasonably practical within the period of time requiring action. The minutes of the meeting shall clearly spell out the need for the emergency meeting.

4. Adjourned sessions.

Any session of the Council may be continued or adjourned from day to day, or for more than one day, but no adjournment shall be for a longer period than until the next regular meeting thereafter.

5. Presiding officer.

The Mayor, or in his/her absence the Assistant Mayor, shall take the Chair at the hour appointed for the Council to meet, and shall immediately call the members to order. The roll shall then be called by the Clerk, who shall enter in the minutes of the meeting the names of the members present. The name of any member entering after roll call shall be entered on the minutes with the time of arrival.

6. Temporary chairperson.

In case of the absence of the Mayor and Assistant Mayor the Clerk shall call the Council to order and call the roll of the

members. If a quorum is found to be present, Council shall proceed to elect, by a majority vote of those present, a Chairperson of the meeting, to act until the Mayor or Assistant Mayor appears.

7. Decorum and order.

The presiding officer shall preserve decorum and decide all questions of order, subject to appeal to Council. If a member transgresses the rules of Council, the presiding officer shall, or any member may, call him/her to order, in which case he/she shall be seated, subject to the members' right to appeal under Section 14.

8. Quorum.

The majority of the Councilors elected shall constitute a quorum. In case that a less number than a quorum shall convene at a regular or special meeting, the majority of the members present are authorized to send for all absent members.

OFFICERS AND EMPLOYEES

9. Clerk and employees.

The Clerk shall be under the control and direction of the Chair during sessions of the Council.

10. City manager.

The City Manager shall attend all meetings of the Council, unless excused by the Mayor or Assistant Mayor. He/she shall keep the Council fully advised as to the financial conditions and needs of the City. He/she may make recommendations to the Council and may take part in discussions on all matters concerning the welfare of the City. He/she shall have a seat but no vote in the meetings of the governing body.

11. City clerk.

The City Clerk or Assistant City Clerk shall be ex officio Clerk of the Council and shall keep minutes of the meeting and perform such other and further duties in the meeting as may be ordered by the Mayor, City Manager, or Council.

12. City solicitor.

Unless excused by the City Manager, the City Solicitor (if on staff) shall attend all meetings of the Council. Any member of the Council may at any time call upon the City Solicitor for an oral or written opinion to decide any question of law, but not decide upon any parliamentary rules.

13. Officers and employees to attend.

The head of any department, or any officer or employee of the City, when requested by the City Manager or the Council shall attend any regular, adjourned, or special meeting and confer with the Council on all matters relating to the City.

DUTIES AND PRIVILEGES OF MEMBERS**14. Right of floor.**

When recognized by the Chair a member shall confine himself/herself to the question under debate, avoid personalities, and refrain from impugning the motives of any other member's argument or vote.

15. Right to appeal.

Any member may appeal to the Council from a ruling of the presiding officer. If the appeal is seconded, the member making the appeal may briefly state his/her reason for the same, and the presiding officer may briefly explain his/her ruling; but there shall be no debate on the appeal and no other member shall participate in the discussion. The presiding officer shall then put the question, "Shall the decision of the Chair be sustained?" If a majority of the members present vote "Aye", the ruling of the Chair is sustained; otherwise, it is overruled.

16. Limitation of debate.

No member shall be allowed to speak more than once upon any one subject until every other member choosing to speak thereon shall have spoken, and no member shall speak more than twice upon any one subject, nor for a longer time than ten minutes, without leave of Council.

17. Voting.

Every member, present when a question is put shall vote either "Aye" or "Nay", unless Council shall, for special reason, excuse him/her from voting. Application to be excused from voting must be made before the votes are called for. The member having briefly stated the reason for his/her request, the decision thereon shall be made without debate. The Mayor shall vote last and all votes on motions accepted by the Council shall be by roll call vote.

18. Demand for roll call.

Upon demand of any member, made before the negative has been put, the roll shall be called for yeas and nays upon any question before Council. It shall not be in order for members to explain their vote during the roll call.

19. Personal privileges.

The right of a member to address the Council on a question of personal privilege shall be limited to cases in which his/her integrity, character or motives are assailed, questioned, or impugned.

20. Dissents and protests.

Any member shall have the right to express dissent from or protest against any ordinance or resolution of Council, and have the reason therefore entered upon the journal. Such dissent or protest must be filed in writing, couched in respectful language, and presented to Council not later than the next regular meeting following the date of passage of the ordinance or resolution objected to.

21. Excusal from attendance.

A member may be excused from attendance at a Council meeting upon advance notice and for good cause as determined by the Mayor.

22. Excusal during meeting.

No member may permanently leave the Council meeting prior to adjournment without permission from the presiding officer.

COUNCIL PROCEDURE**23. Setting the agenda.**

When setting the agenda for a Council meeting, the Mayor will coordinate agenda items with the City Manager. Both the Mayor and the City Manager will come to a mutual agreement on determining the content of the agenda. Upon placement of an agenda item under New Business, a notation must be added to each item to indicate who requested it. Once the agenda is approved, the Council Clerk will format and post the agenda.

24. Order of business.

The business of all regular meetings of the Council shall be transacted in the following order, unless the Council by vote of at least two-thirds of the members present shall suspend the rules and change the order:

1. Pledge of Allegiance
2. Roll Call of Council Members
3. Agenda (Changes)
4. Report of Secretary
5. Mayor's Notes
6. City Manager's Report (Note: Questions on Departmental Reports can be addressed during this time)
7. Appointments to Boards and Committees

8. Citizen's Forum—Non-Agenda Items (Note: Citizens will be allowed to speak on agenda items when they are discussed by the City Council)
9. Old Business
10. New Business
11. Committee Reports
12. Future Agenda Items and Directives
13. Adjournment

During the Citizen's Forum portion of the Council meeting, citizens in attendance may speak on non-agenda items for a five-minute period.

The Mayor or Assistant Mayor, in the absence of the Mayor, may invite citizens in attendance to speak on individual agenda items, with the exception of first reading of proposed ordinances. Each citizen so recognized may not speak more than once on any one subject and for no more than five (5) minutes without leave of Council. Questions and answers by both citizens and members of the Council shall be at the discretion of the Mayor or Assistant Mayor, in the absence of the Mayor, and shall follow proper procedure for order.

25. Filing with clerk.

Every ordinance, resolution, document and agenda item to come before the Council for consideration must be filed with the City Clerk before noon of the preceding Friday of the day on which the Council meets. The agenda shall be mailed or delivered to each Councilor, City Solicitor and City Manager by Friday, prior to said Council meeting. The agenda shall be made available to the public at the City Clerk's office by 4:00 p.m. on Friday.

26. Precedence of motions.

When a question is before the Council, no motion shall be entertained except: (a) to adjourn, (b) to fix the hour of adjournment, (c) to lay on the table, (d) for the previous questions, (e) to postpone to a certain day, (f) to refer, (g) to

amend, and (h) to postpone indefinitely. These motions shall have precedence in the order indicated. Any such motion, except a motion to amend, shall be put to a vote without debate.

27. Committee of the whole.

When the Council shall decide to go into Committee of the Whole without objection, the regular officers shall continue to serve; otherwise the Council shall appoint a Chairman to preside, and the presiding officer of the Council shall leave the Chair. The rules of the Council in so far as applicable shall be observed in the Committee of the Whole, except that no limit shall be placed on the frequency of speaking, that the yeas and nays shall not be taken, and that motion to rise and report progress shall always be in order and shall be decided without debate.

28. Motions out of order.

The presiding officer may at any time, by a majority vote of the members elected, permit a member to introduce an ordinance, resolution, or motion out of the regular order.

29. Motion to adjourn - When not in order - Not debatable.

A motion to adjourn shall be in order at any time, except as follows: (a) when repeated without intervening business or discussion; (b) when made as an interruption of a member while speaking; (c) when the previous question is being taken. A motion to adjourn is debatable only as to the time to which the meeting is adjourned.

30. Motion to lay on table.

A motion to lay on the table shall preclude all amendments or debate of the subject under consideration. If the motion shall prevail, the consideration of the subject may be resumed only upon motion of a member voting with the majority and with the consent of two-thirds of the members present.

31. The previous question.

When the previous question is moved, and seconded by one other member, it shall be put as follows: "Shall the question be put to a vote?" and the issue on which the vote is to be taken shall be re-stated. There shall then be no further amendment or debate; but pending amendments shall be put in their order before the main question. If the "Shall the question be put to a vote?" be decided in the negative, the issue voted upon remains before the Council.

32. Motion to postpone.

All motions to postpone, excepting a motion to postpone indefinitely, may be amended as to time. If a motion to postpone indefinitely is carried, the principal question shall be declared lost.

33. Yeas and nays.

On the passage of every ordinance or resolution the vote shall be taken by yeas and nays and entered in full upon the record. Every member shall be required to vote, unless excused for cause by vote of the Council. The vote shall be for or against a pending ordinance or resolution and not on the report of the committee thereon.

34. Reconsideration.

After the decision on any question, any member who voted with the majority may move a reconsideration of any action at the same or the next succeeding meeting. A motion to reconsider shall require the same number of votes as is required to adopt an ordinance or resolution. After a motion for reconsideration has once been acted on, no other motion for a reconsideration thereof shall be made without unanimous consent.

35. Procedure in absence of rules.

In the absence of a rule to govern a point or procedure, reference shall be made to Robert's Rules of Order.

36. Anonymous communications.

Unsigned communications shall not be introduced in Council.

ORDINANCES**37. Introduction.**

All proposed ordinance and resolutions shall be introduced in the Council in printed or typewritten form.

38. Review.

All proposed ordinances shall be prepared by the City Solicitor and bear his/her certification that they are in correct form. The City Manager shall attach to each proposed ordinance a brief explanation of the provisions thereof, and where it is proposed to amend an existing ordinance, such explanation shall indicate the change sought to be made. Said explanation shall also show the name of the department or party at whose request the proposed ordinance was prepared by the City Solicitor.

39. Appropriation ordinances.

The City Solicitor shall not prepare any ordinance, nor shall the City Clerk accept for filing any proposed ordinance providing for the appropriation of money after the budget is adopted unless the same shall be accompanied by a resolution, which shall show fully the purpose of the appropriation and the fund to which it is to be charged and which shall bear the approval of the City Manager, the director of the department under whose supervision the money is to be expended, and the City Finance Director. Passage shall be governed by the provisions of Section 41 of the City Charter.

40. Distribution of copies.

The City Clerk shall prepare copies of all proposed ordinances, together with copies of the statement of the City Manager and the aforesaid form as above provided, for distribution to all members of the Council at the meeting at which the ordinance is

to be introduced. Whenever any member of the Council is absent from such meeting the City Clerk shall arrange to have copies delivered to him.

41. Reading of ordinances and resolutions.

The first reading of any ordinance or resolution shall be for information. if there be objections to it, the question shall be:

"Shall the proposal be adopted on first reading?" Upon the announcement of a second reading, the question shall be upon engrossment, the vote upon which shall be a roll call vote. By engrossment, as herein used, is meant the point beyond which amendment of the proposal may not be made, unless the order of engrossment is reconsidered, which action may be taken by a majority of the members present voting.

42. Reference.

All ordinances and resolutions after the first reading may be referred by the presiding officer to such committee as would be appropriate, unless otherwise ordered by the Council, which shall consider and report the same with its recommendations to the Council at its next regular Council meeting.

43. Substitute ordinances.

If an ordinance is amended, it shall be reported as a substitute ordinance. A substitute ordinance shall be accompanied by an exhibit showing the part of the original ordinance to be amended, properly identified by page, section, or paragraph reference to the original ordinance, and having a line drawn through the part stricken out and that part added shown in italics or in a different colored ink or underscored. Copies of the exhibit shall be furnished to each member of the Council.

44. Report of committee.

If referred to committee, all ordinances and resolutions must be reported by committee within ten days after date of reference, except as otherwise provided in these rules or at the next meeting succeeding the expiration of ten days. If not reported as above provided, any member of the Council may call the

document out of committee by notifying the Clerk and Mayor in open session of his/her intention. It shall then be the duty of the City Clerk to place the document before the Council for consideration at the next succeeding meeting without any further reference.

45. Readings.

Ordinances shall not be passed until they shall have been read twice. At the first reading the explanation of proposed ordinance or the ordinance in its entirety may be read. At the second reading, the entirety of the ordinance will be read, prior to the public hearing, which is to be held on a separate day at regular meeting of the Council, unless otherwise required. The second reading to be only after advertisement of the ordinance and public hearing.

No ordinance shall be revived or reenacted by mere reference to the title thereof, but the same shall be set forth at length as if it were an original ordinance. No ordinance shall be amended by providing that designated words thereof shall be stricken out and others inserted in lieu thereof, but the ordinance or section as amended shall be set forth in full.

MISCELLANEOUS

46. Privileges of floor.

No persons except members of the Council and officers named in the rules, and persons invited by vote of the Council, shall be admitted within the bar of the Council Chamber, and the Sergeant-At-Arms shall cause this rule to be rigidly enforced.

47. Permission required to address council.

Persons other than members of Council and City officers shall not be permitted to address Council except upon introduction of a Councilor. If anyone other than a City official desires to speak to a member of Council while Council is in session, the member, if agreeable to the request, shall leave his seat and retire to the rear of the Council Chamber or elsewhere until the conversation is finished.

48. State or federal cooperation - procedure.

All proposals for projects which contemplate cooperation with, or financial participation by, the state or federal government, shall be transmitted to Council by the City Manager. If a City board or commission desires to propose such a project, the proposal shall first be filed with the City Manager. All proposals shall be in approved form and accompanied by proper plans and specifications conforming to the requirements of respective state or federal government. If Council approved the proposal, it shall by resolution authorize the City Manager to make application to the proper authority.

49. Suspension of rules.

Any provision of these rules not governed by the Charter or Code may be temporarily suspended at any meeting of the Council, by a two thirds vote of all members elected. The vote on any such suspension shall be taken by yeas and nays and entered upon the records.

50. To amend rules.

These rules may be amended or new rules adopted by two thirds vote of all members of the Council. Any such alterations or amendments shall be submitted in writing at the preceding regular meeting and shall be placed on the calendar under the order of new business. This requirement shall be waived only by unanimous consent, with a recorded vote of all members.

51. E-mail and other communications between meetings.

To ensure compliance with the letter and spirit of RSA 91-A and with the due process rights of the public before the City Council; to clarify Council members' ability, between meetings, to research issues and prepare motions or other potential Council actions, thus promoting efficient use of meeting time, but only to the extent allowed by law; and to clarify the role of electronic media such as E-mail in achieving these goals, members will abide by

the following. Nothing in this policy prevents any distributions, communication, or ex parte communications which pertain solely to:

- scheduling of meetings or hearings
 - the determination or ordering of agenda items or topics to be taken up at meetings or hearings; or
 - general procedural requirements pertaining to such scheduling and agenda matters.
- a) Individual Council members may, between meetings, prepare drafts of motions or other potential Council actions. They may also research or investigate general or specific factual issues. However, if the research pertains to a matter before the Council, the member shall, at the public hearing, report all findings to the Council, and if pertaining to a public hearing, the public shall be given a meaningful opportunity to be heard.
- b) A distribution may be made to any number of Council members, so long as it does not request a response or raise an expectation of a response between meetings. Whenever a member makes a distribution concerning a pending or future matter and it involves a quorum of the Council (counting all senders and recipients):
1. The member making the distribution shall report on it, and its contents, at the next public meeting of the Council unless the information is exempt from disclosure under RSA 91-A; and,
 2. If pertaining to the subject of a properly noticed public hearing, the public shall be given a meaningful opportunity to be heard regarding the information in the distribution.
- c) Communication means a transfer of information from one person to another. It includes face-to-face or phone conversations, letters, memos, e-mails, web sites, or any other media, regardless of the location or ownership of any device or equipment used.
- Communications between meetings or a series of communications, involving more than one Council member

which requests a response or raises an expectation of a response involving a quorum or more of the Council or of any Council committee or sub-committee are prohibited. Such communications shall be considered deliberations and shall occur only at meetings noticed in accordance with RSA 91-A and Council Rules.

- d) Ex Parte Communication is communication, other than at a legally noticed meeting, between a Council member and a person with an interest in, or affected by, a pending or future matter.

Council members shall not initiate Ex Parte Communications. If an Ex Parte Communication is initiated by another person, the Council member contacted shall:

1. Refrain from discussing the substance or merits of a case;
2. Inform the person, if necessary, that such a discussion could lead to disqualification;
3. Refer the person to the appropriate City office or to a Council meeting, as appropriate; and
4. Report on the conversation to the Council at the next public meeting.

52. RSA 91-A Email requests.

The Claremont City Council operates under the following principles:

- Openness in the conduct of public business is essential to a democratic society to ensure both the greatest possible public access to the actions, discussions and records of all public bodies, and their accountability to the people.
- The public has the right to inspect, during regular business hours and at the appropriate department location, all public governmental records and copies except those records that are temporarily unavailable or are specifically exempted by law.

To ensure compliance with NH RSA 91-A and with the due process rights of the public before the Claremont City Council.

All Non-Privileged Council Email Correspondences will be released without a Legal Review by the City Solicitor under a 91-A Request being submitted in compliance with current city procedure.

All Privileged Council Emails, as defined under NH RSA 91-A will be sent to the city Solicitor for a legal review and redaction as required under current law. All emails deemed "Privileged" will be marked by the sender if it complies with the designation of "Privileged" Under RSA 91-A.

Any questionable email or a portion of an email may be exempt from disclosure shall be addressed by the City Attorney or designee prior to release.

The City Manager or their designee will facilitate the actual release of all council emails.

53. Conflict of interest.

Conflict of Interest - If a potential for Conflict of Interest is identified, it should be brought to the attention of the entire Council at the time of discovery. Any member of the Council who might be shown to have clearly prejudged an issue or have a conflict of interest on an issue before the Council, places that issue in doubt and the City at great legal risk, therefore he or she should not take part in discussion or voting on the issue. He or she may, however, participate in the public hearing as a private citizen.

If anyone, on or off the Council, raises the question of prejudgment or conflict of interest on the part of any member and that member is unwilling to voluntarily step down, the remaining members of the Council shall hear any evidence the challenger and the challenged may have; subsequently, the Council, by two-thirds vote, shall decide whether the challenged member may sit. If there is substantial evidence of prejudgment or direct financial interest, the vote should be to require the challenged member to step down. Any two (2) members of the Council may request that the chair or the city manager secure a written opinion as to the potential conflict of interest of any Council member.

Recusal:

If a member recuses himself on an issue, he or she becomes a member of the public for purposes of that matter. A recused Councilor shall always step away from the Council table.

When the Council is in a public session, the recused member should either sit with the public or leave the room, as they choose. Of course, if the recused member is a party in the matter, he or she may also have specific rights or particular role to play in the matter, and should do so as appropriate.

When the Council is in a nonpublic session, the situation is different. The only people with a right to attend a nonpublic session are the Councilors themselves and other invited attendees. A recused member is not acting as a Councilor for that matter and thus does not have any more right to attend a nonpublic session than any other member of the public. Therefore, when a Councilor recuses himself or herself from a matter in a nonpublic session, he or she should leave the meeting room immediately and return when the discussion and/or action on that matter have ended.

54. Appointment of councilors to boards, committees or commissions.

Appointments of Council members to boards, commissions or committees will occur in January, or upon a vacancy, via the nomination process at a Council meeting. Council members should indicate their desire to serve on a board, commission or committee during the first regularly scheduled meeting of the month. After accepting all nominations for an appointment, the mayor will ask for a vote for each member seeking the appointment. The individual with the highest number of votes shall be appointed.

55. Reading letters into the record.

To have a letter read into the record, either the originator of the letter or their designee must do so. No member of the Council shall read a letter from a citizen into the record.

